

# Killing field of Polashbari

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NINE days after the collapse of the factory building of Spectrum Industries Ltd. at Polashbari, Savar on 11 April, Brigadier General Nizam Ahmed announced the end of the rescue operation carried out by the Military Engineer Corps and the Fire Service. Their efforts had recovered 73 dead bodies, including that of 4 Ansars, rescued 97 workers, out of whom two had died subsequently in hospital and 84 had been admitted to hospitals for injuries. Why there was no single consolidated list is perplexing. The figure of victims and survivors arrived at a total of 225. So what became of the rest of the 300-350 night shift workers who were assumed to be working on the seventh, fourth and third floors of the building that night? This question has been asked by the long line of families standing outside in the hot sun, day after day, hoping that their relatives -- major bread earners -- would emerge from the debris. They stood there holding their relatives' photographs hoping that it would help recognition by the rescue party. They stood there even after the military drove away, hoping for a miracle!

## The public has a right to know

Since the first day, news of the collapse and its aftermath has been inadequate, confusing and contradictory. The management was conspicuous by its absence, even though there was activity in the adjoining factory which shares the same owner. There has been no single, authoritative government spokesperson to inform the public accurately of the number of workers employed in both shifts, and those in the night shift who were trapped inside. The BGMEA too has been unable to calculate near accurate estimates from the production capacity of the factory.

The official response to the building collapse has been hesitant and has raised misgivings on several counts: the first is the issue of culpability for the collapse and for workers' lives, the second is the efficacy of the rescue operation, the third is the compensation for the dead, the injured and the long term rehabilitation and re-employment of all workers employed in this factory.

## Accountability for industrial deaths

The first news on the electronic channel and later in a small column in the print media described it as an acci-

dent. However, these were no ordinary deaths, workers did not succumb by chance or accident. Their deaths amount to culpable homicide. We need to recognise the responsibility of the management, the engineering and construction firm for defaults in construction, and the negligence of the regulatory agencies in not checking the construction. What is called for is a prompt, independent and effective investigation, resulting in prosecution and punishment of those responsible.

A day or so earlier a boiler explosion had killed one worker. But that warning went unheeded. Most experts and even officials of the BGMEA have recognised that the fault lay with the construction itself. Permission from the Cantonment Board was given for a four-storey building that was constructed two years ago on 9,374 square feet. We are told that the owner had bought land from Habibur Rahman

hampering the investigative work. But we know that the owner Shahriar Syed Hossain also owned Shariar Fabrics, the adjoining factory facing the highway. The first step should have been to seize all documents in this factory, and, in fact in the Baridhara office. Should one attribute this default on the part of the government agencies or BGMEA to inefficiency or a cover up?

## What became of the missing workers

Three hundred and fifty workers buried under debris of a collapsing building would be a national disaster in any country, demanding immediate and large scale rescue. But although the Military Engineer Corps and Fire Service arrived three hours later, on 11 April, there was little they could do without proper equipment. A crane had to be borrowed from a private company in Naogaon, and it

## Compensation

There has been much show of sympathy for the workers. The Prime Minister and President both went to the site, and left with prayers for the dead. But more than exhortations what was expected was some effective action. The BGMEA President said the association would pay for medical treatment and a compensation not exceeding Tk 100,000.00. It's not certain how this sum has been arrived at. Up till a few years ago, when workers died in fire accidents a lump sum of Tk 25,000.00 was used to buy off the families. This has gone up to match inflation no doubt, but even so the promised sum does not seem to tally with any legally calculated needs of the workers. The 1895 Workers' Compensation Act as amended in 1955 argues for a calculation of claims on the number of years a worker would have been employed plus other factors. A garment worker is more than often the only means of

jobs because of the collapse, which raises the question of their compensation as well.

The collapsed Spectrum Industries and its sister Shahriar Fabrics produced nearly 80,000 items of clothing for export, mainly to Canada, France, US, Belgium, Spain and Germany. These companies have by now learned of the disaster and have expressed more concern than has been forthcoming from the factory owner. Mismanagement or lack of compliance on workers' safety in this case may reflect upon the entire industry, and Bangladesh can hardly afford it given the global competitive practice. This is yet another reason why there has to be a credible move to attribute responsibility for the disaster.

## Criminal charges

What steps have been taken to hold the owner responsible for compensating the workers, for loss of jobs, medi-

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six years ago. The construction extended onto the Baipol Khal (canal) which is marshy, public land. Interviews with different officials as reported in the media have identified insufficient piling in the foundation and beams to support an eight storey structure. This was not done presumably for cost saving. Who was the architect or engineer who drafted these plans? Enquiries relating to their competence are of utmost importance.

The Cantonment Board admitted that they had not given permission for the last four storeys, then how come no one took any action when they saw this tall building rising just behind the Cantonment Office in Polashbari? As is usual in such cases several enquiry committees have been set up. RAJUK has set up a five-member committee, to investigate the causes of the collapse, but it has yet to submit a report, and there is no mention of testing the soil, mode of construction, use of material, etc. BGMEA too has set up a separate enquiry and some of its members have been on the site. But when will its report be made public? Have similar investigations been made into the purchase of land? The absence of records is supposed to be

took around 40 hours to reach the site. By 13 April, the media reported that rescue and removal of debris was carried out with 3 concrete drillers, welding equipment, rotary saws, tripping hands, spades, reciprocating saws and crow bars and three cranes and two bull dozers.

Many civic, labour, environment and human rights organisations have voiced concern with the rescue operation. Was it not possible to borrow more equipment? Or to request expertise from neighbouring countries if local expertise was not available? Shouldn't saving lives have been priority number one?

From morning till night workers' families lined up on open grounds, being baked in the hot sun, waiting interminably to see if their relative would emerge. Although there were several government agencies, BGMEA and some voluntary groups, there was no one to cope with the trauma of these families. No one had thought of providing some sustenance or even water to them. Identification of dead bodies also seemed a very cumbersome and insensitive affair, with bodies spread on the ground attracting flies.

support or the main means of support for a family, and would have been so for many years to come. How is a family expected to survive with Tk 100,000.00, and for how long? Even now they are totally penniless, as there is no one from the management to pay them their dues for last month. Does BGMEA not have a responsibility to make sure that payments are made from its member's account? The adjoining factory was functioning, orders were processed, some payments must have come into the company's accounts, which need to be offset against workers' dues.

It was gathered that 84 injured were admitted into different hospitals. In the Orthopaedic Hospital alone there are patients who may need long term physical rehabilitation for loss of limbs. Who will stand guarantee for their treatment and for their physical rehabilitation? What has been the contribution of the government, BGMEA and the employer to hospital charges? Promises of intent are not enough, the workers need written agreements so that they are not ignored once the publicity cameras are switched off. Spectrum. A large number of workers are now without

cal care, etc. and the bereaved families of dead workers? While the police have filed an FIR under section 308A (case no 48) in Savar thana, they are moving at a snail's pace to trace the accused or seize evidentiary documents. Why this hesitation? Their first port of call should be his father-in-law, who happens to be a member of Parliament and Chairman of the Parliamentary Standing Committee on Land, and his wife who was recently appointed a High Court judge. Surely, since both have taken an oath, under the constitution, to maintain the law, they could not very well appear to act against the law in this matter. They are oath bound to speak the truth.

In order to pursue compensation cases, a prime need is to recover records of workers and other relevant factory files. Some of these records may have been maintained in Shahriar Fabrics, and a court order should have been obtained to seal all documents. If the public prosecutor's office is unable to invest energy and expertise into this case of corporate culpability, it could perhaps draw upon legal expertise in the country as was done in the case of rape and murder of Yasmin in 1995.

## Building a strong industry

The garment industry is by far the country's most important manufacturer, earning around \$5 billion annually and accounting for about two thirds of all exports. Dare we admit that a large share of this is the contribution of the workers? Bangladesh has about 2,500 garment factories employing almost 1.8 million workers, about 80 per cent of them being women. While the manufacturers have had access to credit and other facilities, little has been done to improve conditions of work. Is it because we feel workers are expendable?

An industry cannot develop stability and strength to compete globally unless the workers are guaranteed security and safety. A few months ago a good example was shown by the government to honour those who lost their lives in the service of the country. When twelve army officers were killed in the Congo, they were given a state funeral, flags flew half mast, a national period of mourning was declared, and the families were compensated with substantial amounts. This is as it should be. However, contrast this with the case of the victims in the killing fields at Spectrum, where the families were given little consideration to bury their dead, the injured lie in hospitals wondering who will pay their bills, and no workers have received their dues, leave alone compensation.

In these days of competitive trade and consumer consciousness, Bangladesh cannot afford to be careless about its working environment. Many buyers have instituted compliance conditions which need to be observed. Even if there is a scarcity of information within the country, Spectrum buyers have a reputation to protect. Consumer organisations such as Clean Clothes Campaign have already raised concerns about workers' rights in this case in particular and in the industry in general. Next week, in Washington, a BGMEA delegation is due to participate in discussions on duty free access for garment exports to. Their argument will no doubt be that Bangladesh is a poor country and needs such support. We too agree that the garment industry in Bangladesh needs to be sustained, but not only in the interest of the manufacturers. An equally important stake is that of the workers, and therefore the industry must provide a safe work place. To prove that they intend to do so, the culpability for Spectrum must be addressed.

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